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DEMOCRACY AND TRADITION

A review of Jeffrey Stout, *Democracy and Tradition*. Princeton University Press, 2005. 348 pp. 19.95(Paper). ISBN: 0-691-12382-9.

JEFFREY STOUT'S *Democracy and Tradition* is in no uncertain terms a book for Americans. Moved by both the growing numbers of critics of liberal democracy and the rise in nationalist sentiment in the States, Stout attempts here a work of public philosophy aimed at re-articulating a theory of American democracy that can simultaneously combat the problems of abstract political commitment and retain the priority of liberal individualism. Stout's thesis is that all democracies should be conceived as concrete traditions of public discourse about a variety of particular conceptions of the "good" – even religious ones – rather than a theoretical construct that attempts to abstract from them. It is only when we have turned away from trying to legitimate our conception of democracy in terms that claim to account for all forms of life while existing simultaneously distinct from those forms of life that we will be able to realize the valuable political resources of our own American culture.

Part one articulates a tradition of American democratic virtues with special attention to piety and hope. In chapter one Stout sets right to the task of challenging what he calls "the new traditionalism" of Alisdair MacIntyre, John Milbank, Stanley Hauerwas and others by examining the theme of piety in the American democratic tradition of Ralph Waldo Emerson, Walt Whitman and John Dewey. These latter thinkers all outdo Augustine and his various present day followers, Stout argues, for they are able to articulate a tradition of piety that both advocates a rigorous moral character and honors individual conscience. Chapter two attempts to connect this democratic ethic with the literary tradition of Ralph Ellison and James Baldwin. For Stout, the works of Ellison and Baldwin exemplify a practical commitment to democratic ideals despite being written in the face of their disturbing absence. The form of social criticism practiced by both Ellison and Baldwin is thoroughly astute and yet avoids skepticism and apathy, precisely the kind social criticism Stout's book tries to explicate more theoretically.

Part two engages several of the defenses and critiques of contemporary liberal culture, all of which attend to the role of religion. Stout's goal here is to expand

the confines of political conversation to allow for the expression of religious perspectives while simultaneously limiting what he sees as the parochialism of the new traditionalists. Stout addresses the first part of this project in chapter three, where he considers Rawls' conception of political liberalism and the role – or lack thereof – of religion in it.

In contrast to Rawls and other liberal, social contract theorists of the past (Kant, Dewey, Rorty, etc.), Stout asserts that the attempt to bracket off religious discourse from the public reasoning is both implausible and ultimately delusional, simply because it looks to figure the structures of democracy in a fashion so removed from the practical lives and traditions of its inhabitants it that limits the realm of political action to abstractions. Stout's central claim in this chapter is that for a theory of democracy to be feasible it must be a kind of *sittlichkeit* – a form of "ethical life" that engages the historical, cultural and religious lives of those who are to participate in it. In this sense, the problem that Stout ultimately seems to identify with Rawlsian liberalism is not that it is too individualistic (far from it) but that it considers individuals and the communities they compose as only ideal communities. Rawls posits thoroughly abstract communities rooted in the pristine confines of historical blindness and cultural neutrality – and consequently his liberalism remains too opposed to the value that can be found in the political conversations between real communities. In Stout's view, this type of liberal thinking "feels compelled to reify a sort of all-purpose, abstract fairness or respect for others because it cannot imagine ethical or political discourse *dialogically*" across different communities and identities (74). From this perspective, apathy, impotence, and (more importantly) ignorance are the fate of all theories of democracy that forsake history for abstract universality. Indeed, Stout sees the illuminative power of democracy as one of its central values, and he thinks that it is high time it be extended in full to the more "particular" voices in our democracy – especially religious ones:

If they [religious citizens] are discouraged from speaking up in this way, we will remain ignorant of the real reasons that many of our fellow citizens have for reaching some of the ethical and political conclusions that they do. We will also deprive them of the central democratic good of expressing themselves to the rest of us on matters about which they care deeply. If they do not have this opportunity, we will lose the chance to learn from, and to critically examine what they say. (64)

Stout argues that democracies proper are defined by their aversion to ruling out any conception of the good *prima facie*. Subsequently, for Stout, the inclusion of religious claims and arguments in the public sphere is the realization of freedom, rather than its limitation. Citizens are only free to the extent that they can express their most deeply held values in the political realm, without fear of censure or ridicule. Further, the blind dismissal of all religiously based values and arguments leads to a significant amount of resentment and fragmentation within a liberal society, a resentment that Stout finds in the work of Milbank and

Richard John Neuhaus specifically. On the other hand, when we make these religious claims explicit the cohesion of the social body is protected and even flourishes, quieting the pique with discussion and understanding while simultaneously bringing more individuals into the fold.

Stout extends this concern for solidarity in chapters four through seven, where he focuses more specifically on the work of the new traditionalists, and particularly Hauerwas and MacIntyre. While Stout agrees with many of the critiques of liberal democracy put forward by these thinkers, he asserts that many of their arguments are counterproductive. While new traditionalists endlessly lament the fact that we no longer share a “commitment to a single shared tradition” and thus “cannot take very much for granted when conversing with one another” to the extent that “our public ethical discourse is a cacophony of disparate claims”, Stout insists that returning to this point over and over only works to obscure what tradition we do have (118). Stout thus seems to agree completely with thinkers like Hauerwas when they argue that a political culture must promote real, prophetic values like love and justice, but he argues that such a promotion “requires a different, less doctrinal, more improvisational kind of explication” (173). Stout’s objection to the new traditionalists is thus more concerned with their methodology and rhetoric and than their ideas per se. The picture of liberal thought in their work is of particular concern for Stout, specifically the one drawn in MacIntyre’s *Whose Justice? Which Rationality?* wherein MacIntyre makes his most pronounced case against the incoherence of liberalism (a term Stout distances himself from). If new traditionalists are truly interested in cultivating the values they claim to embrace, Stout counters, then they should work to unearth those values wherever they see them lying dormant, rather than persistently railing against some caricature of liberal political culture.

Part three is perhaps the most innovative section of Stout’s book, and the section in which he begins to explicate more fully his own theory of democratic virtues. Here, drawing heavily on the work of Robert Brandom, Stout endorses a theory of what he calls “expressive rationality” (or, what he calls elsewhere “pragmatic expressivism”) and attempts to show how it can assist the liberal political philosophy of Rawls and company as well as the virtues of the new traditionalists. Indeed, in chapters eight through twelve as well as the conclusion Stout sets out to show how expressive rationality can bring thinkers as diverse as Rorty and Hauerwas back into conversation with one another.

The influence of Brandom, and particularly Brandom’s inventive take on Hegel, in chapter 8 is especially important as the remainder of the book focuses on elucidating this chapter’s ideas and attempting to anticipate possible criticisms of it. For both Brandom and Hegel, Stout argues, the rational deliberation between competing conceptions of the good must proceed by recognizing the fact that those conceptions are informed by and arise within specific types of social,

ethical life – or, again, *sittlichkeit*. The problem is that these conceptions rarely appear to us as such, but rather manifest themselves in all manner of practices, customs, traditions, rituals, etc. Further, when we examine such “conceptions” we usually only note their material character, their appearance in the world as concrete actions undertaken in particular situations. Subsequently, when we consider the moral legitimacy of such acts and practices we tend to apply criteria external to an act itself so that we are able to abstract from the specifics of that act (be it standard duty, virtue, utility what have you). Yet Stout argues that embedded within these acts are all sorts of tacit ideas and premises that work to legitimate them in the lives of those who practice them, though they often go unexamined. For example, many Americans believe that there is nothing morally wrong with driving an SUV even though it may use a lot of gas. If we simply consider this practice in relation to some moral criteria that exists apart from the act itself we will not attend to the underlying schema of legitimation that makes such a position implicitly acceptable to those who hold it, and thus the real issues at stake (personal liberty, self-expression,???) will never be addressed. Stout argues that political communities are simply not sustainable when they exclusively address the discordances that exist between the material practices of their citizens, simply because such citizens effectively talk past one another. Expressive rationality attempts to make explicit the premises that inform the position of the SUV driver. Such an account of rationality truly meets the idea of “practical reasoning” for Stout because it “begins in the implicit acknowledgement of material commitments and evolves in time toward their explicit articulation in a normative vocabulary suitable for critical reflection” (193). Expression is here a central democratic good because it is what gives rise to conversation and thereby, hopefully, cooperation. Once we have observed the “background of material inferential properties” and adopted “the expressive resources for making norms explicit” Stout argues that we will be able to engage in the “practice of exchanging reasons and requests for reasons with other citizens” and will have formulated “the discursive core of democratic culture” (195).

While Stout obviously argues that such a conception of rationality has been absent from liberal political theory, he also argues that it is expressive rationality that most faithfully follows the spirit of liberal ideals. Indeed, Stout notes soon after beginning to sketch out his theory that it was Rawls who insisted that fairness and respect “require an honest effort, on the part of any citizen advocating a policy, to justify it to other reasonable citizens who may be approaching the issue from different point of view” (65). A person is reasonable, for both Rawls and Stout, when they are socially cooperative – when she is willing if not eager to stand together with her fellow human beings in an effort to construct a society in which they can together ensure some common good and the maximum amount of liberty commensurable with that good. This willingness to stand together is itself a form of freedom, Stout argues, though it differs significantly from our usual negative understanding of freedom (in Isaiah Berlin’s sense of the term) as a system of protective restraints and rights. For

Stout, freedom should be understood as the end product of expressive rationality, which Stout calls “expressive freedom.” Expressive freedom is ultimately the freedom from obfuscation, the freedom one enjoys when one overcomes the material appearances of our conceptual priorities and begins to discern and discuss the premises that allow those material appearances to come forward. The individual who seeks to be “expressively free” is someone who “is always in the process of transforming the inferential significance of the normative concepts at his or her disposal by applying them to new situations and problems” (80).

Yet Stout makes sure to insist that a democratic society that practices expressive freedom would still be fundamentally a liberal one, as it would insist upon the inherent worth of the individual while recognizing that those individuals are the products of specific religions, cultures, and languages.

On my model, each individual starts off with a cultural inheritance that might well come from many sources. In my case, these sources included the training I received in Bible school, the traditional stories my grandmother told on Sunday afternoons, and the example of a pastor committed passionately to human rights. But they also included an early exposure to Emerson, Whitman, and Thoreau; the art, novels, and music brought into home by my bohemian older brother; and countless other bits of free-floating cultural material *that are not the property of any group*. ... It would simply be inaccurate to describe my point of view as that of my family, co-religionists, or my race. *One would fail to show me respect as an individual if one assimilated my point of view to some form of group thinking*. Pgs. 74-5 [Emphasis added]

Needless to say, many will find fault with the idea that culture is something like a commodity, something that can be “inherited” and treated as a “property.” While Stout clearly believes that we are all the “products” of our respective cultures he certainly insists, at the same time, that we have a good deal of instrumental control over how we, as individuals, are produced. This position stems logically from his conception of expressive rationality, a conception in which reason is cultivated through the transcendence of the material appearances of our most deeply held beliefs to the location of their true meaning: inside the consciences of our individual selves. In this sense, *Democracy and Tradition*’s idea of expressive rationality advocates a hermeneutic of political discourse that seeks to overcome the signifier at every turn in order to get at what it sees as the signified core behind – as well as apart from – language itself. For Stout, it seems that it is the precisely the material “letter” of any aspect of a political discourse that needs to be overcome in order for its true meaning, its “spirit,” to properly emerge. Whether we are considering the practice of free trade, supporting our troops, or deciding whether it’s good to recycle, the definitive meaning of our corporal actions resides within the reflective posture of we adopt. We may be able to intervene within the postures of others, to query

their premises and offer our own, but their respective, individual consciences or “interiors” are the only places where such deliberation can take place and in the end the integrity of the individual must be protected. While Stout certainly argues that consciences of all individuals are formed within particular traditions with specific histories and distinct ways of seeing the world, he also puts great emphasis on the ability of our respective consciences to “resist their own absorption into the social mass and to cultivate whatever virtues are required to foster the development of novel forms of action, speech, association, and self-hood.” (282). Expressive rationality is, for Stout, precisely the way to step outside of the circumstances of our own material realities. Theorists of a continental stripe—be they poststructuralist, Lacanian, Marxist, or some combination thereof—will obviously have all sorts of criticisms of this conception of reason. Stout does not consider any of their possible objections here; he is too busy attempting to build alliances between authors and texts that he sees as possessing a common, though implicit, symmetry. Yet what makes *Democracy and Tradition* a book of considerable interest is that it demonstrates this symmetry so well. Stout’s conceptions of rationality and freedom highlight exactly what seems to unite liberal political philosophers and their communitarian Christian critics: a tendency to interpret material realities as ultimately referring to, and subsequently deriving their meaning from, the consciences or “interiors” of the individuals who live within and shape those realities. In shifting the focus from what individuals really *have a right to* as members of a liberal democracy to what individuals really *hope and want for* their liberal democracy Stout does not challenge the priority of the individual conscience (itself obviously a pretty abstract idea) as much as refashion it in such a way that it might better articulate the values it ascribes to and the reasons and premises for doing so. While conscience becomes a much more complicated phenomenon in Stout than it has been in other liberal political philosophies the importance of it still persists, and this seems to signal where liberalism and Christianity can, and do, meet.

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